Application of a Psychological Approach to Understanding the Vinaya School Argument for Prohibition of Silk

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Abstract:

The monastic rules, as purported to have been provided by the Buddha, are complex in untangling how and to what purpose they were derived. Although stories of the origination of the rules are provided in the accompanying texts, the stories do not always provide much insight into the purpose for the rules (DeGraff, 2001). As a result, some rules have been the subject of great debate over the course of centuries. In some cases, practices extending beyond merely following the disciplinary rules in the Vinaya Pitaka (hereafter "vinaya") have been adopted and debated. One such case is the rejection of wearing silk in some Buddhist lineages. The Chinese monk Daoxuan (596-667), a patriarch of the Vinaya School of Buddhism, prohibited silk in robes in his commentary entitled Four Part Vinaya Practice and Service Comments (Sifen lii shanfan buque xingshi chao 四分律刪繁補闕行事鈔, T 40. no. 1804) (Riggs, 34). During the Edo Period (1603-1867) in Japan, monks in the Vinaya School and their opponents debated vigorously on the topic of wearing silk in robes. This study demonstrates that the debate involved three issues that are also evident in the precedents of the vinaya:

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(1) A monk who seeks silk is responsible for killing;
(2) A monk who seeks silk is prideful or ostentatious;
(3) A monk who uses silk may be perceived by others as violating the prohibition on killing, tarnishing the reputation of the Sangha.

Rupert Gethin suggests that, rather than applying legalistic approach to ethics, early Buddhists had a psychological take on ethics rooted in Abhidharma analysis of states of mind.

This study demonstrates that, ultimately, arguments for or against wearing silk rest on different interpretations of compassion rather than legalistic interpretations of vinaya rules. Thus, the present analysis expands Gethin's thesis to show that, in addition to early Theravadin Buddhists, Mahayana Buddhists in Edo Japan also had a psychological take on Buddhists ethics.

Keywords: Rupert Gethin, Vinaya, Buddhist ethics

從心理學的角度來看戒律學派關於禁止絲綢的論議

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摘要：

佛陀對於出家人所制定的戒律，其緣起與內容是非常複雜的。儘管在相關文本中，可看到有關制戒緣起的故事，但這些故事未必能夠深入了解制戒的目的，因此在幾個世紀中，某些戒律始終是備受爭議的話題，例如是否可穿絲綢？作為佛教律宗的一位祖師，中國僧人道宣（596-667年），在其著作《四分律刪繁補闕行事鈔》中，便禁止穿絲綢製作的袈裟。在日本江戶時代（1603-1867 年），支持律宗的僧侶，及持反對立場的僧侶，也在是否可穿絲綢製袈裟的問題上，展開了激烈的辯論。本研究主要將探討該辯論中所涉及的三個議題：

（1）贊成可穿著絲綢製的僧人應對殺戮負責；

（2）贊成可穿著絲綢製的僧人是為了驕傲或炫耀；

（3）這些僧人可能被認定為違反不殺生戒，進而玷污了僧團的聲譽。

在 *Journal of Buddhist Ethics* 中，Rupert Gethin 認為早期的佛教徒，應從阿毘達磨分析心法的心理學角度來看待倫理，而非從律法的角度。本文最後結論，戒律中關於能否穿戴絲綢的論證，應基於對慈悲的不同

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解釋，而非對律藏規則的法律解釋。因此，本文將 Rupert Gethin 的觀點做了衍伸，指出除了早期的上座部佛教徒外，江戶時代的日本大乘佛教徒也對佛教倫理有心理學面向的理解。

關鍵詞：魯伯特蓋丁、戒律、佛教倫理

Introduction

The monastic rules, as purported to have been provided by the Buddha, are complex in untangling how and to what purpose they were derived. Although stories of the origination of the rules are provided in the accompanying texts, the stories do not always provide much insight into the purpose for the rules (DeGraff, 2001). As a result, some rules have been the subject of great debate over the course of centuries. In some cases, practices extending beyond merely following the disciplinary rules in the *Vinaya Pitaka* (hereafter "vinaya") have been adopted and debated. One such case is the rejection of wearing silk in some Buddhist lineages. The Chinese monk Daoxuan (596-667), a patriarch of the Vinaya School of Buddhism, prohibited silk in robes in his commentary entitled *Four Part Vinaya Practice and Service Comments (Sifen lii shanfan buque xingshi chao* 四分律刪繁補闕行事鈔, T 40. no. 1804*)* (Riggs, 34). During the Edo Period (1603-1867) in Japan, monks in the Vinaya School and their opponents debated vigorously on the topic of wearing silk in robes. This study demonstrates that the debate involved three issues that are also evident in the precedents of the vinaya:

(1) A monk who seeks silk is responsible for killing;
(2) A monk who seeks silk is prideful or ostentatious;
(3) A monk who uses silk may be perceived by others as violating the prohibition on killing, tarnishing the reputation of the Sangha.

Recent authors such as Damien Keown (Keown) have attempted to apply Buddhist ethics to contemporary issues. In a recent essay in the *Journal of Buddhist Ethics*, Rupert Gethin argues that, although not entirely inaccurate, some of the representations of Buddhist ethics have been biased toward modern approaches to ethics. Instead, Gethin suggests that, rather than applying a legalistic approach to ethics, early Buddhists had a psychological

take on ethics rooted in Abhidharma analysis of states of mind. In the treatise *Arguments for the Southern Mountain Vinaya School Prohibition of Silk Kesa (Nanzan risshu kesa kinken junsho ron* 南山律宗袈禁絹 順正論, DNB 74.303-310) Ueda Shōhen (1828-1907) presented what he saw as the various viewpoints on wearing silk robes, and outlined his position as a vinaya monk who abstained from wearing silk. Although Shōhen and other monks who engaged in the silk debate did not apply Abhidharma analysis to the problem, their arguments are based on the states of mind evoked by prohibiting or approving the use of silk in robes. This study demonstrates that, ultimately, arguments for or against wearing silk rest on different interpretations of compassion rather than legalistic interpretations of *vinaya* rules. Thus, the present analysis expands Gethin's thesis to show that, in addition to early Theravadin Buddhists, Mahayana Buddhists in Edo Japan also had a psychological take on Buddhists ethics.

The Silk Rule

Three versions of the vinaya are used today: the Pali Theravadin Vinaya in Sri Lanka and Southeast Asia; the Dharmaguptaka Vinaya in China, Korea, and Japan; and the Mulasarvastivada Vinaya in Tibet and Mongolia (Gethin, 1998, 86). Daoxuan and followers of the Vinaya School used the Dharmaguptaka Vinaya and the Mulasarvastivada Vinaya. Many differences exist between the three versions of the vinaya, but the three versions of the vinaya are all derived from similar origins in early Buddhism. The Pali Theravadin Vinaya provides insight into the Theravadin thinking explored by Gethin, and is used in the following analysis.[1] Excerpts from the

[1] The Pali Theravadin Vinaya is used because of its availability in English. Additionally, the translation and explanation by Thanissaro Bhikkhu, also known

Dharmaguptaka Vinaya and the Mulasarvastivada Vinaya are also used where appropriate. The exploration of state of mind in all three versions of the vinaya to the extent possible is important in testing a cross-school, cross-lineage approach to Buddhist ethical thinking.

One passage of the vinaya is central to Daoxuan's original arguments, and subsequent debate: "**11.** Should any bhikkhu have a felt (blanket/rug) made of a mixture containing silk, it is to be forfeited and confessed" (DeGraff, 2009, 183). As can be seen in DeGraff's translation, the word *felt* (*santhata*) requires a parenthetical to be specified because it is not easily translated. In his commentary, DeGraff describes to what the word *felt* refers:

> *Santhata*, translated here as a felt blanket/rug, is a type of cloth described in the texts simply by its method of manufacture. Instead of being woven, it is made by strewing threads over a smooth surface, sprinkling them with a glue-like mixture made from boiled rice, using a roller to roll it smooth, and then repeating the process until the felt is thick and strong enough for one's purposes. Although felt made like this has a number of uses, its major use in the time of the texts seems to have been as a small personal rug for sitting or lying down, or as a rough blanket for wearing around oneself when sick or cold. Blankets/rugs like this are still made and used in parts of India even today, and as the non-offense clauses to this and the following rules show, it is precisely to this type of blanket/rug that these rules apply. (DeGraff, 2009, 183)

In modern Mandarin Chinese, the word central to Daoxuan's argument was *woju* (臥具, pronounced *gagu* in Japanese). DeGraff's description of *santhata*

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as Geoffrey DeGraff, provides commentarial insight relevant to the silk debate.

corresponds to the word *woju* in Mandarin. The word *santhata* actually refers to a type of material that is often employed as bedding, but can be used for other purposes. On the other hand, the word *woju* directly refers to bedding. Daoxuan interpreted *woju* to be a term used to identify the three robes. According to the vinaya, monks were allowed to own three robes. Monks also slept on the robes, so Daoxuan could reasonably conclude that robes could fall into the category of *woju*. Diane Riggs summarizes Daoxuan's arguments as follows:

> Daoxuan, however, wrote in his commentary, [*Four Part Vinaya*] *Practice and Service Comments,*that silk was not allowed for any robe. His argument was based on his interpretation of the term *gagu* 臥具 (literally, "reclining gear"; i.e., sleeping mat) as a categorical term for the set of three robes (fasc. 2; T 40. 69a). Since silk was prohibited for the *gagu,* Daoxuan argued that the intention of the *vinaya* was to prohibit the use of silk in all robes. Daoxuan also cites the *Sarvastivada vinaya* "four meanings," *shigi* of stopping slander, extending faith and respect, practicing the way in order to attain peace, and doing no harm to living beings, emphasizing this last point to argue that the Buddha's robe as a "robe of compassion" should not be made from materials that harm others (fasc. 2; T 40. 68c). Daoxuan and his followers extended the prohibition against silk to include other objects besides robes. In *Chapter on Buddhist Vestments* Daoxuan argued that donated silk materials must be refused or destroyed (T 45. 836a). Suwa (1984, 165) speculates that the Chinese were more sensitive to the suffering of the silkworms than the Indians because of their greater contact with the manufacturing process. He cites the influence of arguments against meat-eating that appear in the

> *Mahaparinirvana sutra,*suggesting that Chinese Buddhists were already questioning the use of silk more than a century before Daoxuan formulated his arguments prohibiting its use in robes. (Riggs, 2010, 34-35)

Rigg's analysis clearly links the thinking of Daoxuan and others in China to compassion for the suffering of silkworms.

Daoxuan's contemporary Yijing (635-713), in *Record of the Inner Dharma from the Southern Seas(Nanhai jigui neifa zhuan*, 南海寄歸内法傳 T 54. no. 2125), refuted Daoxuan's interpretation of the word *woju*, and claimed the prohibition on silk was a needless limitation on monks and would inhibit lay people from accumulating merit for the giving of silk (Riggs, 2010, 49). Daoxuan's arguments were only partially based on the interpretation of the prohibition of silk in *woju*, and so Yijing's correction in regard to the use of that word does not address Daoxuan's entire argument. Daoxuan is also arguing, based on the Sarvastivada Vinaya, that the "'robe of compassion' should not be made from materials that harm others" (fasc. 2; T 40.68c in Riggs, 2010, 49). Despite Yijing's refutation, Daoxuan's followers continued the prohibition of silk in robes.

Other elements of the Pali Theravadin Vinaya, however, suggest that compassion for the suffering of silkworms is not the purpose for which the rule was created. The rule prohibiting silk in felts is the first rule discussed in the Silk Chapter of the vinaya. The second rule in the silk chapter requires bhikkhus to forfeit and confess the possession of black wool felts. DeGraff (2009, 184) attributes this to the recurring theme that stylish, luxurious, or elegant items are not befitting to bhikkhus. This line of reasoning is equally plausible for silk. Additionally, in the Pali Theravadin Vinaya, another rule explicitly allows silk in robe-cloth (Mv.VIII.3.11 in DeGraff, 2001). If the

reason for prohibiting the use of silk was because of the suffering of the silkworm, one would expect that silk would be universally prohibited. In fact, Daoxuan and his followers made attempts to expand the prohibition of silk beyond the rules in the vinaya to prevent the suffering of silkworms. However, since silk is prohibited in felt but not in robes, the vinaya suggests that there are factors specific to the rug itself. In the time of the Buddha, it may have been rather luxurious to have silk in a rug, whereas it was more common to have it in a robe.

Establishing monastic rules based on prevailing fashion may seem rather excessive, especially since fashions change. However, according to the *Mahaparinibbana-sutta*, the Buddha did not intend the rules of the vinaya to be eternal: "If the Sangha (the Community, the Order) should wish it, Ananda, let them, when I am gone, abolish the lesser and minor precepts (rules)" (*Mahaparinibbana-sutta* in Rahula, 137). Because impermanence is a central tenet of Buddhism, the impermanence of the vinaya is also not surprising. If prevailing fashions changed and silk was no longer considered a luxury item, the Sangha could abolish the rule.

The Pali Theravadin Vinaya was not used by Daoxuan, but the Pali Theravadin Vinaya does offer some insight into the original intent of the rule prohibiting silk in felts. The Pali Theravadin Vinaya explicitly allows silk in robe-cloths, suggesting that the rule was related more to prohibiting monks from displaying silk ostentatiously than to the suffering of silkworms. Even though the version of the vinaya that Daoxuan and his followers used did not explicitly forbid the use of silk in robe-cloth, Daoxuan's followers continued to follow his prohibition on wearing silk. Thus, their inspiration appears not to be derived based on a misinterpretation of the word *woju* in the rule prohibiting silk in felts. Rather, their inspiration likely was derived from humility in appearance and avoiding harming silkworms. Although avoiding

harming living beings is also attributable to direct interpretation of the prohibition of doing harm to living beings in the four definitions of the Mulasarvastivada Vinaya, the absence of a clear rule for the prohibition of silk demonstrates that the interpretation of Daoxuan and his followers was not a literal or legalistic one.

In her dissertation *The Cultural and Religious Significance of Japanese Buddhist Vestments*, Diane Riggs includes a partial translation of the precedent for the prohibition of silk from the Dharmaguptaka Vinaya. The vinaya presents six monks in regard to whom the vinaya repeatedly states "the group of six monks sought silk to make a new reclining mat." The precedent is translated as follows:

> At that time of upheaval, those ruffians made it with silk. The householders saw it and they were quite critical, saying that the disciples of Sakyamuni have no shame about harming living beings. On hearing of this, others said that “our practice is the true way, how can that be the true way?” To seek for silk to make a new reclining mat is to be criticized as in the above event. All bhiksus hear this! (fasc. 7, T 22.614a, translated in Riggs, 2010, 159)

This passage requires careful analysis, because the passage does not clearly prohibit using silk reclining mats (felts). It prohibits seeking for silk to make a new felt. The passage does not reflect what a monk should do if silk is given as an unsolicited gift or found as a discarded material. Seeking silk is prohibited, but the passage does not identify whether the silk is new silk requiring the killing of silkworms, or existing silk which would not require the killing of silkworms. If the silk is second-hand so that it does not involve killing, making a new reclining mat is still to be criticized, so there must be another problem. There are two potential interpretations that fit the situation:

(1) Observers are equating silk with the harming of silkworms, so there is a problem with the *perception* that killing is occurring, whether or not a monk would meet the criteria for actually killing silkworms.
(2) The idea of silk as a fashionable or high-status item that is beyond the humble garments of a monk also fits the precedent.

Riggs comments that the vinaya rule "few wants, knowledge of sufficiency" may apply (159).

This seems to fit with interpretation (2). However, she footnotes her comment as follows:

> This interpretation is supported by a passage in the beginning of fascicle 7 of *Ten Recitations Vinaya* [Mulasarvastivada Vinaya] where the Buddha rules that having a new mat made up out of silk is a violation, but receiving it second hand is not. (T 23.47c-48a).

Riggs' reasoning for this footnote is not evident. A *bhiksu* violating the rule "few wants, knowledge of sufficiency" may desire a silk mat out of a sense of insufficiency and receive a second-hand mat. The *bhiksu* could also display a second-hand mat to householders and other monks with pride of his possession, so the passage to which she alludes does not support her comment. The approval for accepting a second-hand mat reflects that the Mulasarvastivada rule is actually about killing. Receiving silk second-hand more likely means that the cloth is already existing and does not require killing of silkworms to produce it.

Interpretation (1) is different from actual killing. A monk who obtains silk second-hand or discarded does not knowingly or intentionally cause harm to a living being. However, others may perceive that the monk is causing harm to silkworms. As a result, the reputation of the monks or the Sangha would be tarnished by the behavior of the monk, regardless of whether the monk

actually harmed anything. The precedent says the monk is "to be criticized as in the above event." If "as in the above event" refers to the specific manner in which the monk is criticized, the monk is to be criticized for killing, but as already demonstrated, a monk receiving secondhand silk is not involved in killing. On the other hand, "as in the above event" may only indicate that the monk is to be criticized, not specifying for what the monk should be criticized. Interpretation of the passage then does not resolve the intent of the prohibition on felts.

If the debate between Yijing and Daoxuan only rested on the interpretation of the word *woju*, then Yijing's interpretation would be in accordance with the vinaya. However, Yijing is arguing that it is permissable to accept silk under certain contingencies. At least two contingencies have been established:

(1) It may be acceptable to receive silk for a robe but not for a felt as described in the Pali Theravada Vinaya and the Dharmaguptaka Vinaya.
(2) It may be acceptable to receive second-hand silk but not new silk as in the Mulasarvastivada Vinaya.

There are three possible reasons for these arguments:

(1) A monk who seeks silk is responsible for killing;
(2) A monk who seeks silk is prideful or ostentatious;
(3) A monk who uses silk may be perceived by others as violating the prohibition on killing, tarnishing the reputation of the Sangha.

Comparison of the vinaya does not clarify the intent of the rule but actually complicates interpretation. As is demonstrated later in this study (in the section Silk Debate in Edo Period), all three of the above arguments are evident in the silk debates in Japan. In the next section, Gethin's interpretation of the psychological approach to Buddhist ethics is developed.

A Psychological Approach to Ethics

What may be termed Buddhist ethics relies primarily on the state of mind of the perpetrator of an action rather than the inherent nature of the action itself. However, a certain type of action may correspond with certain states of mind. Ruppert Gethin, in his article "Can Killing a Living Being Ever Be an Act of Compassion?" focuses on the Theravadin tradition in arguing that contemporary research on Buddhist ethics does not recognize the psychological nature of Buddhist ethics. This section describes Gethin's key arguments as they apply to the case of wearing silk. In the following section, Gethin's psychological approach to Buddhist ethics is tested with the case of wearing silk in the Mahayana context of Edo Period Japan.

Gethin's claim is that the psychological approach to Buddhist ethics represents the early Theravadin understanding of the Abhidharma literature. Gethin asserts modern efforts to clarify Buddhist ethics have been successful in much of their description of Buddhist ethics, but they adopt a modern legalistic interpretation that does not appropriately represent the way of thinking of early Buddhists:

> While this work has certainly succeeded in clarifying Buddhist thinking on ethical issues, I also think that by too readily transposing Buddhist discourse into the framework of contemporary ethical discourse it has sometimes inadvertently distorted what I see as the distinctively Buddhist psychological take on ethical issues…The canonical and commentarial Vinaya texts are not simply concerned with ethical issues and matters of morality; they are also concerned with legal questions — with how to determine whether or not a monk or nun has broken one of a set of 227 or 311 rules. As the texts are well aware, breaking a rule of law may or may not be the same thing

> as doing a moral wrong. The ancient Buddhist texts make a clear distinction between that which is loka-vajja and that which is pannatti-vajja — deeds that offend against a universally accepted moral principle and those that offend against a conventionally designated rule. (Gethin, 2004, 169-170)

As a major figure in recent research on Buddhist ethics, Gethin directs his arguments particularly against Damien Keown. Gethin's article is a response to Keown's interpretation that compassion can motivate killing to relieve a living being from suffering. Gethin uses the Abhidharma system of classification of consciousness to refute Keown's interpretation:

> This set of definitions keys the kamma-pathas quite precisely into the Abhidhamma system of classes of consciousness. The fact that intention to kill is accompanied by only painful feeling and has as its roots hate and delusion means that it can only be constituted by two of the standard list of eighty-nine classes of consciousness: the two classes of sense-sphere consciousness rooted in hate and accompanied by unhappiness. (Gethin, 2004, 175)

Although the intention to kill is categorized by only two classes of consciousness, other rules can be violated in a state of wholesome consciousness:

> There are wholesome rules, unwholesome rules and undetermined rules. For just thirty-two classes of consciousness can produce an offence: the eight wholesome sense-sphere consciousnesses, the twelve unwholesome and ten kiriya sense-sphere consciousnesses (Saratthadipani ii 98 in Gethin, 176), and the two wholesome and kiriya higher knowledge consciousnesses. A rule which one breaks

> with wholesome consciousness is [classified as] wholesome, [those which one breaks] with the other kinds are classified accordingly. (Samantapāsādikā 271 in Gethin, 176)

The subjectivity of the rules can then be understood according to the type of consciousness present at the time the rule was broken. In the case of killing, however, hate must be present, so wholesome consciousness cannot generate the intent to kill. It is the type of consciousness that determines whether an act is wholesome, but some acts, such as killing, cannot be performed in a state of wholesome or even undetermined consciousness. The prohibition of killing is universal so long as the intention to kill is present, because the state of mind, rather than anything inherent in the act itself, prohibit it. In fact, killing may occur unknowingly, in which case it is not an offense.

To illustrate this point, Gethin introduces an example from the vinaya in which compassion is the stated purpose for monks to break a vow:

> At that time a certain monk was ill. Out of compassion monks spoke in praise of death to him, and the monk died. Those monks were full of regret, thinking, "The Blessed One has laid down a precept. What if we have committed an offence involving defeat?" They informed the Blessed One of the situation. [He said,] "Monks, you have committed an offence involving defeat." (Vinaya iii 79 in Gethin, 179)

In this case, where Keown argues that compassion can ameliorate an offense, the Buddha (the Blessed One) deems it an offense involving defeat, which in this context means expulsion from the Sangha. The following passage from the *Samantapāsādikā*, a commentary on the vinaya by Buddhaghosa, explains the reasoning:

> Out of compassion: seeing that he was in great pain as a result of his illness, those monks felt compassion and, wanting his death yet not realizing that his death is what they wanted, spoke in praise of death, saying, "You are virtuous and have done wholesome deeds. Why should you be afraid of dying? For someone who is virtuous certainly the only thing that can follow from death is heaven." And as a result of their praising death, that monk stopped taking his food and died prematurely. Therefore they committed the offence. But that they spoke in praise of death out of compassion is said by way of the common way of speaking. So even now a wise monk should not speak in praise of death like this to a sick monk. For if after hearing him praise [death] the sick monk makes the effort to stop taking food and as a result dies prematurely, even if all that remains to him of life is one process of impulsion, then it is he who has brought about the sick monk's death. However, a sick monk should be given the following sort of instruction, "For one who is virtuous the path and fruit can arise unexpectedly, so forget your attachment to such things as the monastery, and establish mindfulness of the Buddha, Dhamma, Samgha and the body, and pay attention to [the manner of] bringing [things] to mind." But even when death is praised, if the person makes no effort [to die] as a result of the praise and dies according to his own nature in accordance with his own life-span and the natural course of events, then for this reason the person who speaks in praise of death is not to be accused of an offence. (*Samantapāsādikā* 464 in Gethin, 181)

The nature of life is *dukkha*, and thus the end of life is a very important time for contemplation. It is exactly because death and dying are suffering that

death brings the opportunity for practice. Thus, the state of mind that would feel sympathy for the suffering of another and wish death on that being, demonstrates hatred of death and *dukkha*. The mind of these monks must be in a state of hatred at the time of praising death, and thus cannot be in a wholesome state of mind. The monks take action from this unwholesome state of mind by praising death. Their praise of death is instrumental in convincing the sick monk to seek death and die. Thus, they have committed the offense of killing and are expelled from the Sangha.

Gethin concludes that Theravada Buddhist ethics hinge on the distinction between wholesome acts motivated by nonattachment, friendliness, and wisdom and unwholesome acts motivated by greed, hatred, and delusion (Gethin, 190). Underlying all the rules of the vinaya is this central tenent. The vinaya can be broken, so long as the state of mind is pure. It is even proper for an arahat to violate the vinaya when the act of violation is performed with a wholesome state of mind.

The example above involves killing of a human, but the case examined in the present paper is the case of the silkworm. The psychological approach to Buddhist ethics applies equally to animals. There is, however, a distinction in the type of offense, because the offense of killing a human is punishable by expulsion from the Sangha, whereas killing an animal is a more minor offense that must be confessed. The Pali Theravadin Vinaya prohibits the killing of animals: “61. Should any bhikkhu intentionally deprive an animal of life, it is to be confessed” (DeGraff, 2009, 395). The *Samantapāsādikā* clarifies some of the factors that determine the severity of the offense:

> In the context of this rule, “living creature” refers only to animals; whether one kills a small or large creature, there is no variation in the offence, but in the case of a large animal there is more

> unwholesomeness because of the greater effort [involved]. Perceiving a living creature as such means that even when in the course of cleaning one's mattress one perceives just a bedbug egg as a living creature and without compassion removes it by crushing it, there is an offence entailing expiation. Therefore by establishing compassion in such circumstances, one who is heedful will fulfil his obligations. The rest should be understood in exactly the same way — with the [same] arisings, etc. — as has been stated in the case of killing a human being. (*Samantapāsādikā* 864-865 in Gethin, 2004, 177)

There are some mitigating factors in terms of the size of the animal, and the effort involved in killing it. Those mitigating factors, however, only pertain to the severity of the karmic consequences. In the case of a human, a monk should encourage the human to be mindful. That does not apply to the case of animals, but "the rest should be understood in exactly the same way." In other words, the state of mind is the same. Even though a small animal involves less effort to kill and lacks the virtue of a human, the act of killing can only be performed in a state rooted in hate and accompanied by unhappiness.

An important point in regard to the analysis of wearing silk is the intention involved. How wearing silk is perceived is very important. As DeGraff observes in his commentary, attempting to kill an inanimate object under the belief that it is a sentient being can result in *dukkata*, which refers to the level of offense corresponding to killing an animal, but actually killing a sentient being under the belief that it is an inanimate object is not an offense. Thus, a simple everyday act, like walking in a room, can be an offense. If someone with the intent to kill, attempts to step on a piece of dirt that appears to be the egg of a bed bug, it is an offense. If someone with no ill-intent steps on the eggs of bed bugs thinking they are pieces of dirt, there is no violation.

(DeGraff, 2009, 373)

The example of the bed bug egg is particularly germane because it is even smaller than a silkworm. A silkworm is a caterpillar of a silk moth. It spins a cocoon, and before it emerges, the silk is harvested by boiling the cocoon. The moth will damage the silk by emerging from the cocoon, so to harvest the silk, the silkworm must be killed before it emerges. Whoever harvests the silk knows that the caterpillar is killed by boiling, so the harvester is violating the prohibition on killing. If stepping on a tiny bed bug with the intent to kill violates the vinaya, then the karmic consequences are even greater for killing a silkworm, which is physically larger.

A Theravadin monk, therefore, is prohibited from harvesting silk, and by implication, a monk is prohibited from asking another to harvest silk. In the example from the *Samantapāsādikā*, the monks, believing it compassionate, merely used speech to praise death. However, Abhidharma analysis of their state of mind shows that they were motivated by hatred of suffering, because they spoke praise of death. The sick monk took the final action of stopping taking food, but the speech of the other monks was enough for them to have committed the offense of defeat. In the same way, using Abhidharma logic, a monk requesting silk for his robe, ordering silk, paying for silk, or using any other means to obtain silk with the knowledge that his wish for silk would require someone to commit an act of killing would constitute an act of killing by the monk as well.

Silk Debate in Edo Period Japan

The vinaya movement in Japan was associated with monks who rejected the established bureaucracy of the temples. The monks in established monasteries were largely from aristocratic families and were appointed by the emperor, and the highest achieving monks were granted the privilege to wear

purple silk robes. Additionally, the Zen tradition adopted gold brocade surplices as the symbol of transmission of the Dharma. (Nishimura)

In the Kamakura period (1185-1333), monks who withdrew from the official Buddhist institutions were called *tonse* (遁世) monks. They promoted social welfare through voluntary service and philanthropic projects. Many of these monks were devoted to the vinaya. Their observance of the vinaya rules was commonly associated with special protection from defilements such as contact with corpses. These monks wore black hemp and linen robes. The black hemp and linen robes came to symbolize their altruism and purity. Thus, the black hemp and linen robes became something of a status symbol. (Matsuo)

In the Tokugawa period, the official attire of each school of Buddhism was codified by the shogunate. Along with other regulations codifying practices of Buddhists schools, this strengthened divides among schools. It was under that environment that vinaya monks could take great pride in the reputation of their robe, indicating why there was so much debate on the topic of silk in robes. The black hemp and linen robes were associated with rejection of the ostentatious presentation and prestige of gold brocade, purple silk, and other symbols of official prestige. Yet, when the black hemp and linen robes came to be highly regarded, non-vinaya schools could levy the same charges of ostentatious presentation and pride against the vinaya monks. (Nishimura)

In 1880, the Vinaya School monk Ueda Shōhen wrote the treatise *Arguments for the Southern Mountain Vinaya SchoolProhibition of Silk Kesa (Nanzan risshu kesa kinken junsho ron* 南山律宗袈禁絹順正論, DNB 74.303-310*).* He reviewed various arguments in the debate about wearing silk in a robe, and discusses his own religious practice in a question and answer format with a layman:

> [Layman's] Question: I have undertaken to read the citations from the teachings of both teachers [Daoxuan and Yijing] again and again. The implications are very detailed. It is difficult to clarify the good and the bad immediately. So I ask you to make a judgement. [Shōhen's] Answer: The two teachers' explanations are like Spring orchids and Autumn chrysanthemums; both are beautiful, so choose as you will for your own practice, relying on the explanation that you can trust. As for me, I am in Daoxuan's lineage, so I deeply believe in his explanation. I now will try to reconcile the criticisms of other lineages. (DNB 74.305a translated in Riggs, 2010, 158)

At first, Shōhen evokes lineage. This is an argument based on *upaya*—expedient means. He is accepting the lesser teaching, and offering the student the opportunity to choose his own path based on his level, but then he continues to defend the position of Daoxuan by utilizing the precedent in the Dharmagupta Vinaya explored above:

> The Buddha stops criticism and all is decided in that rule. You should know that the origin of the rule does not just apply to receiving by begging, it prohibits second-hand giving [of silk]. You can say that the Mahayana and the inferior vehicle are the same, but the inferior precepts stop criticism from society, whereas the Mahayana is established for the sake of the hindrances in compassionate practice.[2] The matter is the same, but the intent is different. You must investigate and think about this. (DNB 74.308a translated in Riggs, 160)

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[2] The Japanese term rendered by Riggs as *compassionate practice* is 慈行(*jikō*).

Shōhen distinguishes the difference between higher and lower teachings. As demonstrated above, by linguistic analysis, the meaning of the precedent remains unresolved. Although the criticism of others seems to be a major part of the precedent, he rejects this as an inferior vehicle teaching.

Instead of a critical linguistic analysis, Shōhen invokes compassion. This is consistent with Daoxuan's arguments against harming beings. He also notes that the rule prohibits secondhand giving of silk, even though that does not directly cause harm, and is emphasizing intent. Shōhen is suggesting that associating with silk production, even when given second-hand silk, is a hindrance in compassionate practice. The two of the eighty-nine classes of consciousness rooted in hate and characterized by unhappiness are not specifically addressed. However, in the same way as Gethin, Shōhen is arguing that killing silkworms, or even a remote association with killing silkworms, is a hindrance to compassion practice.

Interestingly, the Theravada tradition would fall into the category to which Shōhen refers as the inferior vehicle, but according to Gethin's analysis the inferior vehicle supports the same conclusion as Shōhen. The Theravada tradition was not established in Japan, so the reference to the inferior vehicle is a rhetorical device used to compare higher and lower teachings, rather than an accurate portrayal of another school. In East Asian Buddhism, the schools are often arranged into taxonomies ranking teachings (*panjiao* in Chinese, *kyōhan* in Japanese). The inferior vehicle would be a lower level teaching that Shōhen introduces as *upaya*, expedient means. In other words, it is acceptable for those who have not attained sufficient wisdom to practice lower level teachings. Thus, Shōhen can give the layman an option in regard to the use of silk. The prohibition on silk is not absolute, but for those ready for compassionate practice, using silk is a hindrance to a compassion state of mind.

Shōhen, then explores what should be done when given silk. The layman in the dialogues cites Yijing's advice:

> If a donor brings an offering with a pure mind then recite a benediction, and accept it, saying, "This sustains me and nurtures your virtue." Truly this is no fault. (DNB 74.305a; T 54.212c translated in Riggs, 162).

Daoxuan, however, requires that all silk received as a gift should be destroyed:

> Reading the *vinaya,* I [Daoxuan] saw that if one receives a silk robe, one should crush it up and mix it up with hard soil to daub on the wall. By this means I doubled my reverence for the rules of the *vinaya.* (DNB 74.304b; T45.879c translated in Riggs, 163).

Daoxuan's advice is consistent with the rule prohibiting silk in felts in the Dharmaguptaka Vinaya, although he extends it to all silk received. The rule gives instructions on how to destroy silk as described by Daoxuan. Riggs also notes that this advice is striking because all versions of the vinaya give permission to receive items that involve killing as long as the killing was not ordered. The passage further emphasizes that, in the Vinaya School, the state of mind of the practitioner is a greater concern than following the rules directly.[3]

As an alternative, Shōhen also suggests that instead of receiving the gift, one can recommend that it be exchanged for cotton or linen. This advice is also striking because if it is not fit to accept as a gift, one may expect that it is

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[3] The vinaya rules are rather inconsistent. There is no clear reason why silk in felts should be prohibited, whereas other items that involve killing are allowed as long as the killing is not ordered.

not fit to trade. Shōhen does not give the advice to shred the silk and mix it with mud as he would presumably do. Once again, a layman may not be ready for the higher level practice, so the expectation accepted by a vinaya monk is not placed on the layman. Again, this confirms that the action relates to the state of mind of the individual, as determined by the individual's level of understanding.

Shōhen concludes as follows:

> A bodhisattva imagines that which comes from afar. Even if one is removed from the act of killing, one is not without the action of killing. Stepping with the foot or wearing things on the body, one is drenched with karma. (DNB 74.309b879c translated in Riggs, 164).

To Shōhen, the compassionate boddhisatva imagines the karma that produced the article, the killing that is required to produce the silk. The word *imagines*[4] is key, because it shows that the karma of the silk is generated in the mind through the imagination of the bodhisattva, not preserved in the fabric itself, nor enforced by the criticism of others. For the layman, Shōhen finds it acceptable for the silk to be sold or traded, which implies the layman does not possess the same compassionate imagination. Thus, the Vinaya School accepts the vinaya as a type of guidance, subordinate to evaluation of the state of mind in terms of compassion. Shōhen's prescribed practice not only overrides permission to accept items that involved killing as long as the killing was not ordered, but also expands the requirement to destroy felts to cover all silk received. According to Shōhen, these modifications in the interpretation of the vinaya are derived from the imagination of the bodhisattva, and by implication, the imagination's role in the bodhisattva's state of mind.

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[4] The Japanese term rendered by Riggs as imagines is 推フ.

The position of the Vinaya School was also often criticized. The Jodo monk Kyōju (1683-1748) wrote the *Lectures about the Decision to Prohibit Silk (Risshu kinshi ketsu kogi* 律宗禁糸 結講義). Shōhen is later than Kyōju, so Kyōju does not respond to Shōhen directly. However, taking Shōhen's arguments as representative of the Vinaya School, Kyōju's lectures can be compared to Shōhen's depiction of the tradition. Kyōju offers the following criticism:

> When the *vinaya* monks merely hear the words, "prohibition against silk," they arbitrarily expand the explanation to include underwear and hats and so on and say that others must follow their example. When they see other *vinaya* monks who use silk they lower their brows, shake their heads and criticize them, calling them "worldly monks." Just like heretics, these guys who prohibit silk spread misery through the world by saying that no one is doing it properly. Even if you say they are encouraging frugality by wearing linen and cotton, no one reproaches them. Their good reputation is based only on the fact that they are wearing cotton so they mislead ordinary people. Recently I heard that there are those who even think that silk should be eliminated from the [cloth] covers of the three treasures. Debates about the disruptive severity of their contempt for the holy are endless. (DNB 74.305a; T 54.212c translated in Riggs, 2010, 165).

As discussed earlier, in addition to the killing involved in the production of silk, one of the main reasons to avoid wearing silk was to be humble and to abandon pride. Kyōju is turning that argument against the vinaya monks, suggesting that they believe they are higher status than other monks. There is a certain degree to which some degree of superiority is implicit in Shōhen's argument. Shōhen is suggesting that vinaya monks must destroy silk that is

given to them, but for lay people, it is not necessary because lay people are not yet at the same stage of understanding. The other vows that the vinaya monks take are also beyond what is expected of laypeople. Thus, some vinaya monks may be proud of wearing linen or cotton, even though abandoning pride is one of the purposes of not wearing silk.

The vinaya monks and their opponents essentially were accusing each other of the same state of mind, prideful selfishness. This pride and the criticism of others is exactly what underlies the vinaya precedent for prohibiting silk. In the Dharmguptaka Vinaya precedent, the householders saw the six monks seeking silk for their robes. The monks put their own desires above the needs of the silkworms, and were criticized for it. The prideful state of mind is one of selfishness rather than selflessness, and the vinaya says that monks who seek silk are to be criticized. Daoxuan and Shōhen claim the purpose of prohibiting silk in robes is compassion for the suffering of silkworms, but this is combined with the purpose of separating from the ostentatious presentation and selfishness of the official monks.

Conclusion

The present paper considers the prohibition of silk in the vinaya, demonstrates Gethin's psychological approach to Buddhist ethics, and compares it to the writing of Ueda Shōhen. The prohibition on silk in the vinaya is limited to felts. Based on the analysis presented, the limitation is based on three potential factors:

(1) A monk who seeks silk is responsible for killing;
(2) A monk who seeks silk is prideful or ostentatious;
(3) A monk who uses silk may be perceived by others as violating the prohibition on killing, tarnishing the reputation of the Sangha.

The primary concern of the Vinaya School's patriarch Daoxuan and the

Vinaya School is that of item (1). Although Yijing demonstrates Daoxuan's misunderstanding of the term *woju*, Daoxuan's argument rests on his appeal to compassion for the suffering of beings.

Gethin contends that modern legalistic notions do not represent early Theravadin thinking on ethics, because the Abhidarma works indicate the early Theravadin thinkers had a specifically psychological interpretation of ethics. In this interpretation, the state of mind of the actor is the determinant of whether a particular action is wholesome or unwholesome. Only two of eightynine classes of consciousness can generate the action of killing, and both are rooted in hate and accompanied by unhappiness. Thus, compassion cannot occur simultaneously with killing.

Ueda Shōhen is removed temporally and spatially by two millennia and half of a continent from early Theravadin thinkers, but his analysis of the prohibition of silk also focuses on states of mind. His concern is the imaginative power of the bodhisattva to see the killing that was required to produce silk and how that imagination is a hindrance to compassion. Shōhen's analysis corresponds with the analysis of Daoxuan. He does not make the rule absolute. He allows lay people to choose themselves whether they will wear silk, but for monks of the Vinaya School, wearing silk is a hindrance to the practice of compassion.

Shōhen's analysis is significant because it further illustrates Gethin's contention that Buddhist ethics are rooted in state of mind. It also illustrates that the fundamental reliance on state of mind as the primary determinant of behavior extends beyond early Theravadin thinkers in India to Edo Period Japan. Many opponents of the Vinaya School existed, but their accusations against vinaya monks also involved state of mind. Particularly, the argument in item (2) above, that silk was worn for the sake of pride, was reversed and levied against the Vinaya School. Kyōju accused the vinaya monks of being

prideful for not wearing silk. This again is an argument about the state of mind of the monks. Thus, there is vigorous debate about whether silk is permissible to be worn, but it is crucial to understand the debate in terms of the state of mind evoked rather than in terms of a fundamental misreading of the vinaya.

The debate does not reach a conclusion, because ultimately only state of mind is important. A non-vinaya monk may hold pride in his vestments. A vinaya monk may hold pride in his vestments. Either may experience the defilement of mind associated with imagining the killing involved in producing silk. The ultimate gauge of practice and ethics is what happens to the state of mind. For the case of simply wearing a silk robe where there is no clear intent to harm other beings, the vinaya rules do not distinguish whether a person is experiencing a wholesome or unwholesome state of mind. From an ethical standpoint, presence or absence of compassionate intention is the final determinant of whether the action is appropriate or inappropriate.

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